

Court No. - 21

Case :- WRIT - C No. - 11825 of 2024

Petitioner :- Gyanwati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anup Kumar Srivastava, Vidyanand Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has prayed for a direction to respondent no.2 to decide his application dated 22.12.2023 whereby he raised objection against the notice of provisional assessment issued to her by the respondent-Electricity Department in a case of assessment based on alleged theft of electricity.

2. Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department very fairly states that the objection will be considered by the concerned Executive Engineer before passing the final assessment order.

3. Accordingly, the petition is **disposed of** in terms of the statement of learned counsel for the respondent-Electricity Department. The procedure prescribed under the U.P. Electricity Supply Code, 2005 shall be strictly followed while considering the objection.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.4.2024

Ankit.